



SUPERIOR COURT OF SAN MATEO COUNTY

Probate - Probate

Courtroom 2C

Hearing Date: 09/29/2026 - 09:00 AM

09/21/2026

12:03 PM

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Judge: Novak, Lisa A.

Clerk: Ortega, Alexandrina

Reporter: Conde, Wendy

**IN THE SUPERIOR COURT OF THE STATE OF CALIFORNIA IN AND FOR THE COUNTY
OF SAN MATEO**

Probate

Department 13

Courtroom 2C

Hon. Lisa A. Novak

September 29, 2026 - 9:00 AM

**If an appearance by Zoom is allowed, parties must appear through Zoom Video.
Zoom Audio is only to be used if Zoom Video is unavailable.
Please check in with the clerk by 8:45 AM.**

Zoom Video/Audio Information	Zoom Phone-Audio Only Information Please Note: You must join by dialing in from a telephone; credentials will not work from a tablet or PC
<u>Click on this link to join the Zoom meeting (no meeting ID or passcode required):</u> Meeting ID: 161 920 9458 PASSWORD: 696850	Phone number: 1 (669) 254-5252 Meeting ID: 161 920 9458 PASSWORD: 696850

If a tentative ruling contains "APPEARANCE ORDERED", failure to appear may cause the Petition to be denied or Opposition stricken. Remote appearance is allowed BUT FOR all matters in which SIJF are sought, and where the Court has ordered an In Person appearance. Failure to appear may result in sanctions.

If a tentative ruling contains "APPEARANCE OPTIONAL", failure to appear is a waiver of oral argument and the Court may issue orders differing from the tentative ruling. Zoom is allowed for all optional appearances.

If a tentative ruling contains "NO APPEARANCE", an appearance is not required, as the matter has been pre-approved, continued, or dropped, as described.

If you wish to appear in response to the tentative ruling or in opposition to a petition, you must notify the probate clerk at dept13@sanmateocourt.org and all other parties of the intent to appear. All notifications must be completed no later than 4:00 p.m. on the court day immediately preceding the day of the hearing.



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17-PRO-01269	SCOTT TRUST AGREEMENT DATED JANUARY 13, 2010	PETITION FOR APPROVAL OF THIRD, FOURTH AND FIFTH ACCOUNT AND REPORT OF TRUSTEE, AND FOR INSTRUCTIONS WITH BENEFICIARIES CONSENT- Continued from 07/24/26
Line 1	Petitioner: LASSAHN, T. ANNE (VALE, ROBERT D.) Objector: Johnson, Cindy (Pro Se)	Petition Hearing

Tentative Ruling:

APPEARANCE OPTIONAL (Zoom allowed)

The Petitioner for Approval of the 3rd, 4th and 5th Account and Report is GRANTED, and the request for Instructions is GRANTED as set forth in the prayer and proposed order. The unverified objection of Cindy Johnson is OVERRULED. All pleadings in probate must be verified. In spite of that deficiency, the court finds none of the arguments presented persuasive, and appreciates the verified response filed by the Trustee, which correctly sets forth the procedural history of this matter. Objector is arguing issues which by and large have already been ruled on by this Court over a period of many years.

18-PRO-00015	STEVE AND JUANA CORTEZ 2004 LIVING TRUST, DATED AUGUST 19, 2014, AMENDED AND RESTATED	
Line 2	Petitioner: CORTEZ, JANE (WILKINS, PAUL A.) Decedent: CORTEZ, JUANA Decedent: CORTEZ, STEVE T. Trustee: CORTEZ, ALBERT VENTURA (THIRKELL, EDWARD D.) Trustee: CORTEZ, JOSEPH (THIRKELL, EDWARD D. PACKARD, DAVID R.) Trustee: CORTEZ, NEIL (THIRKELL, EDWARD D. PACKARD, DAVID R.) Objector: CORTEZ, EVA (Pro Se) Beneficiary: VALENZUELA, RITA (Pro Se) Beneficiary: Cortez, Anthony J	Motion to be Relieved as Counsel



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Tentative Ruling:

APPEARANCE OPTIONAL

Motion to be Relieved as Counsel for both Neil Cortez and Joseph Cortez is GRANTED.

19-PRO-00883	Estate of ROSE LEONG CHOW	AMENDED*- Continued from 07/10/26
Line 3	Petitioner: CHOW, SANDRA (Pro Se) Decedent: CHOW, ROSE LEONG	Petition for Final Distribution

Tentative Ruling:

APPEARANCE OPTIONAL

The Amended Petition does not address the disposition of the Savings Bond, which is part of the estate. Petitioner has once again averred that the "estate consists primarily of real property." Per the Inventory and Appraisal, the estate also includes a savings bond, but that is nowhere included in the Amended Petition. Petitioner must once again amend her petition, include all property of the estate and set forth its proposed disposition, and provide proof of notice she describes to the FTB and the State Dept. of Health Services. [copies of her certified mailing will suffice] Hearing on the Second Amended Petition will be December 10, 2026 at 9:00 a.m.



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22-PRO-01298	Guardianship of SAMANTHA LOU WEBB	Status RE: FIRST ACCOUNT AND REPORT OF GUARDAN OF THE ESTATE AND PETITION FOR ALLOWANCE OF ATTORNEY FEES
Line 4	Petitioner: WEBB, CARLA L. (HUYSENTRUYT, KURT D.) Ward: WEBB, SAMANTHA LOU Guardian: WEBB, CARLA L.	Status Hearing

Tentative Ruling:

NO APPEARANCE

The matter is again continued for Petitioner to:

- File or lodge supporting accounting documents, including all account statements, specified in Probate Code section 2620(c).
- Provide bank information showing that the Stifel account is a blocked account or address why these funds are not included in the guardianship estate accounting. The Acknowledgment of Receipt of Order and Funds for Deposit in Blocked account is insufficient because it does not include an attached Order to Deposit Funds in Blocked Account (form MC-355) as required. Although Petitioner purports that the Stifel account is a blocked account, the 6/10/2024 Order Approving Minor's Compromise order does not order the settlement funds to be held in a blocked account, and there is no signed Order to Deposit Funds in Blocked Account (form MC-355) filed in case number 24-PRO-00404
- Provide an account statement supporting her claim that she distributed \$87,757.00 into the Stifel account.
- File a declaration addressing the discrepancy between her declaration, which states: "...I deposited the sum of \$87,757.00 from my own funds, which is the total amount of social security funds received during the period of the accounting" and the accounting, which says only \$54,660.00 was received from social security during the account period.

The next hearing is November 23, 2026 at 9:00 a.m. The court will not authorize payment of legal fees from the Guardianship Estate for time to correct these deficiencies.



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24-PRO-00072	Estate of John Ernest Hilliare, JR	1. PETITION FOR RATIFYING THE SETTLEMENT DIRECTING THE DEED TRANSFER PETITION FOR RATIFYING THE SETTLEMENT DIRECTING THE DEED TRANSFER. 2.OBJECTION TO ADMINISTRATOR'S FIRST ACCOUNT AND REPORT; AND PETITION TO COMPEL- Continued from 04/22/26 PETITON TO APPROVE FIRST ACCOUNT AND REPORT OF ADMINISTRATOR SCOTT MORRIS- Continued from 04/22/26 PETITION TO APPROVE FIRST ACCOUNT AND REPORT OF ADMINISTRATOR SCOTT MORRIS- Continued from 04/22/26
Line 5, 6, 7	Petitioner: Hilliare, John Michael (Pro Se) Petitioner: Morris, Scott Bryan (BIDDLE, ALEXANDER M.) Decedent: Hilliare, John Ernest, JR Personal Representative: Morris, Scott Bryan (BIDDLE, ALEXANDER M.) Claimant: AT&T MOBILITY Claimant: DISCOVER BANK Mediator: PACKARD, DAVID R. Real Party In Interest: Biddle, Alexander M. (Pro Se)	Petition for Final Distribution Petition Hearing Petition Hearing

Tentative Ruling:

APPEARANCE OPTIONAL

Petition to Intervene and for Related Relief and Petition for Ratifying the Settlement Directing the Deed Transfer and Judicial Order Compelling Vestiture of Title are OFF CALENDAR as they were dismissed with prejudice pursuant to the Court's 6/30/2026 Order Approving Settlement Agreement.



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Given that the 6/30/2026 Order dismisses with prejudice the Objection to Administrator's First Account and Report; and Petition to Compel Factual Discovery and Complete Inventory, the Petition to Approve First Account and Report of Administrator Scott Morris is GRANTED.

25-PRO-00603	IN THE MATTER OF THE VANE FAMILY TRUST DATED SEPTEMBER 4, 2007	PETITION FOR (1) REMOVAL OF TRUSTEE AND APPOINTMENT OF A SUCCESSOR TRUSTEE; (2) FOR RETURN OF TRUST PROPERTY PURSUANT TO PROBATE CODE SECTION 850; (3) TO COMPEL REDRESS OF BREACH OF TRUST; (4) FOR BREACH OF FIDUCIARY DUTY; AND (5) TO COMPEL AN ACCOUN
Line 8	Petitioner: Torres, April L. (ZELENKA, ROBERT G.) Petitioner: Vane, Trevor (MCSWEENEY, BRIAN J.) Decedent: VANE, GRAHAM P. Decedent: VANE, LINDA J.	Petition Hearing

Tentative Ruling:

APPEARANCE ORDERED (Zoom allowed)

Parties are ordered to appear. The Court notes that no objection has been filed by April Torres. However, a substitution of attorney was filed 9/16/2026. The Court will order Respondent to file an accounting of the Vane Family Trust in compliance with Probate Code Sections 16063 and



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1060, et seq. for the period of October 25, 2024 to present and detailing all the acts of April L. Torres as Trustee. Such code-compliant accounting shall be served within 60 days.

If there is no cogent objection and no appearance by April Torres, the Court will issue an Order to Show Cause as to why the petition should not be GRANTED.

25-PRO-01297	Estate of VIRGINIA ARTHUR WEED	AMENDED*- Continued from 08/21/26
Line 9	Petitioner: WEED, KIRSTEN TRACY (GRUBER, JOSEPH E., JR) Decedent: WEED, VIRGINIA ARTHUR Proposed Personal Representative: WEED, KIRSTEN TRACY	Probate of Will and Letters Testamentary Hearing w/ ATA
Tentative Ruling: APPEARANCE OPTIONAL Petition is GRANTED absent cogent objection.		

26-PRO-00158	The Alexandra L. O Keefe 2014 Living Trust	Petition for Order Confirming Trustee and Trust Assets [Probate Code 850 et seq.]- Continued from 07/14/26
Line 10	Petitioner: O'Keefe, Thomas B. (O'KEEFE, MARY G.) Trustor: O'Keefe, Alexandra L. Decedent: O' KEEFE, ALEANDRA L.	Petition Hearing



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Tentative Ruling:

APPEARANCE OPTIONAL

Petition for Order Confirming Trustee and Trust Assets as amended is GRANTED absent cogent objection.

26-PRO-00989	AMANDA BISCAINO ON BEHALF OF JOHNNIE L JONES vs. VICTOR H. JONES	Continued from 08/20/26
Line 11	Petitioner: BISCAINO, AMANDA (Pro Se) Real Party In Interest: JONES, JOHNNIE L. Respondent: JONES, VICTOR H. (Pro Se)	Request for Orders to Stop Elder or Dependent Adult Abuse

Tentative Ruling:

APPEARANCE OPTIONAL (Zoom allowed)

Hearing is CONTINUED to October 19, 2026 at 9:00 am for the guardian ad litem to meet with Johnnie Jones and prepare a report. The temporary restraining order is extended to October 19, 2026.

26-PRO-01124	Estate of THOMASYNE LIGHTFOOTE WILSON	
Line 12	Petitioner: Tallis, Katherine L. (SARRESHTEHDARY, AMIR S) Decedent: WILSON, THOMASYNE LIGHTFOOTE Proposed Personal Representative: Tallis, Katherine L.	Probate of Will and Letters Testamentary Hearing w/ ATA

Tentative Ruling:

APPEARANCE OPTIONAL

The petition is GRANTED absent cogent objection



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PRO108937-A	Conservatorship of DENISE L. BREWER	EIGHTH ANNUAL ACCOUNTING OF SUCCESSOR TRUSTEE AND PETITION FOR WAIVING FEES
Line 13	Proposed Conservatee: BREWER, DENISE L. Petitioner: SAN MATEO COUNTY PUBLIC GUARDIAN (SAN MATEO COUNTY ATTORNEY'S OFFICE) Conservatee: BREWER, DENISE L. Proposed Conservator: SAN MATEO COUNTY PUBLIC GUARDIAN (SAN MATEO COUNTY ATTORNEY'S OFFICE) Child: BREWER, BRIAN Child: BREWER, TROY Child: BUFKIN, DONNA	Petition Hearing
Tentative Ruling: NO APPEARANCE The Eighth Annual Accounting of Successor Trustee and Petition for Waiving Fees is GRANTED absent cogent objection.		

PRO121042	CONSERVATORSHIP OF NESTOR FLORES	EIGHTH ACCOUNTING [BIENNIAL] OF CONSERVATOR AND PETITION FOR ITS SETTLEMENT AND REQUEST FOR FEES
Line 14, 15	Petitioner: San Mateo County Public Guardian (CRUZ, PETER H) Conservatee: FLORES, NESTOR Conservator: SAN MATEO CO PUBLIC GUARDIAN (SAN MATEO COUNTY ATTORNEY'S OFFICE) Brother: FLORES, ADAM (Pro Se) Brother: FLORES, CHRISTIAN, JR (Pro Se) Father: FLORES, CHRISTIAN (Pro Se) Mother: FLORES, EVITA Payor: Payor	Conservatorship Review - Biennial Accounting(Biennial) Conservator and Petition for Settlement



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Tentative Ruling:

NO APPEARANCE

The conservatorship shall continue and be reviewed in two (2) years. The assessment amount of \$850.00 for the cost of the court's investigation is ordered and deferred until the Court determines sufficient funds exist. The fees requested by Counsel for the Conservator and the Conservator in the amount of \$1,500 each are ordered and deferred until the Court determines sufficient funds exist.

Conservator is ordered to file a doctor's declaration pursuant to Local Court Rule 4.81.10 (D) within forty-five (45) days [psychotropic medications to treat conditions other than a major neurocognitive disorder]. Status hearing on the filing of the doctor's declaration is set on December 24, 2026 at 9:00 am.

PRO121082	CONSERVATORSHIP OF KATHLEEN E. EGAN	
Line 16	Conservatee: EGAN, KATHLEEN E Conservator: EGAN, LYNN A (Pro Se) Conservator: EGAN, MARK F (Pro Se) Brother: EGAN, GREG (Pro Se) Grandparent: MACDONALD, ANNETTE (Pro Se) Grandparent: MACDONALD, LORNE (Pro Se) Sister: EGAN, STEPHANIE (Pro Se)	Conservatorship Review - Biennial

Tentative Ruling:

NO APPEARANCE

The conservatorship shall continue and be reviewed in two (2) years. The assessment amount of \$850.00 for the cost of the court's investigation is ordered and deferred until the Court determines sufficient funds exist.

Hearings Total: 16